

25. 9:00 AM CASE NUMBER: C26-00752

CASE NAME: ESTHER DOMINGUEZ VS. FCA US LLC

***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES**

FILED BY: FCA US LLC

TENTATIVE RULING:

This motion is continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. in Department 16. No appearance is required on September 16, 2026.

26. 9:00 AM CASE NUMBER: C26-00752

CASE NAME: ESTHER DOMINGUEZ VS. FCA US LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: FCA US LLC

TENTATIVE RULING:

This motion is continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. in Department 16. No appearance is required on September 16, 2026.

27. 9:00 AM CASE NUMBER: MSC20-00192

CASE NAME: CARLOS DIAZ VS. CHEVRON CORPORATION

***HEARING ON MOTION IN RE: FOR APPROVAL OF PRIVATE ATTORNEYS GENERAL ACT
REPRESENTATIVE ACTION SETTLEMENT**

FILED BY: DIAZ, CARLOS

TENTATIVE RULING:

Summary

Plaintiff Carlos Diaz ("Plaintiff") on behalf of himself and others similarly situated filed this Motion to Approve the Settlement Agreement reached with Defendant Contra Costa Electric ("Defendant" or "CCE"). The motion is **granted** as set forth herein. No appearance is required at the hearing on September 16, 2026.

Background

The proposed Settlement and Release Agreement ("Settlement") resolves all PAGA claims asserted by Plaintiff on behalf of approximately 850 Aggrieved Employees against Defendant CCE. The Settlement follows more than six and a half years of litigation, including extensive discovery, motion practice, mediation, removal to federal court, and resolution of discovery disputes before the Honorable Judge Edward M. Chen.

The total Gross Settlement Amount is \$775,000, which is non-reversionary. This amount is allocated as follows:

- (1) \$373,450 for PAGA civil penalties (the Net Settlement Amount);
- (2) \$350,000 in attorneys' fees to Plaintiff's Counsel;
- (3) \$35,000 in litigation costs;
- (4) \$10,000 as a service award to Plaintiff Carlos Diaz; and
- (5) \$6,550 for settlement administration expenses to ILYM Group, Inc.

The PAGA penalties of \$373,450 are distributed pursuant to Labor Code section 2699(i): **75% (\$280,087.50)** will be paid to the California Labor and Workforce Development Agency ("LWDA"), and **25% (\$93,362.50)** will be distributed pro rata to approximately 850 Aggrieved Employees. The Aggrieved Employees are CCE employees who worked at Chevron's Richmond or El Segundo refineries between November 27, 2018 and the pay period including April 30, 2026, encompassing approximately 48,000 pay periods.

Individual allocations to Aggrieved Employees will be calculated on a pro rata basis based on the number of weeks each employee worked during the PAGA Period. The Settlement Administrator will issue IRS Form 1099s and checks valid for 180 days, with undeliverable funds ultimately transmitted to the State Controller's Office Unclaimed Property Division, ensuring no "unpaid residue" subject to Code of Civil Procedure section 384(b).

The Settlement provides for a broad release of all PAGA Released Claims, including claims under Labor Code sections 201-204, 210, 226, 226.3, 226.6, 558, 558.1, 1174, 1174.5, 1194, 1194.2, 1197, 1197.1, 2810.3, 2698, 2699, 2699.3, 2699.5, and IWC Wage Order No. 16. Additionally, Plaintiff individually provides a broader general release of all releasable claims against CCE.

Attorney's Fees and Costs

Plaintiff's Counsel (Outten & Golden, LLP and the Law Office of Steven Elster) seek approval of \$350,000 in attorneys' fees and \$35,000 in costs. This represents approximately 12% of the total lodestar of \$2,521,409 (after accounting for fees recovered in the related *Nooter* settlement), resulting in a negative lodestar multiplier of approximately 0.12. Plaintiffs' Counsel claim that over 2,974 hours have been expended on this litigation over 6.5 years.

The \$10,000 service award to Plaintiff recognizes his significant individual contribution, the risks undertaken in prosecuting this action, and his agreement to a broader general release of individual claims valued at approximately \$25,000 in alleged damages. The \$6,550 in administration expenses was the lowest bid obtained through a competitive bidding process among three settlement administrators.

The Settlement represents approximately 3.2% of the maximum potential exposure calculated at \$24,085,000, which assumes 100% violation rates across all alleged Labor Code violations for all 48,000 pay periods. The Settlement is fair, reasonable, and adequate in accordance with PAGA's purpose of deterring Labor Code violations and maximizing enforcement of California's wage and hour laws.

ANALYSIS

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

Because this matter also proposes to settle PAGA claims, the Court must also consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021)

72 Cal.App.5th 56 provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (Id. at p. 64.) The court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (Id. at pp. 64-65.)

This is done in two steps: (1) a preliminary review by the trial court; and (2) a final review after notice has been distributed to the aggrieved employees for their comment or objections. (Cal. Rules of Court, rule 3.769.) First, a party to the settlement moves for "preliminary approval of the settlement." (Id., subd. (c).) The court then approves or denies "certification of a provisional settlement class." (Id., subd. (d).) If preliminary approval is granted, the court sets a final approval hearing and provides for notice to be given to the aggrieved employees. (Id., subd. (e).)

At the final approval hearing, "the court must conduct an inquiry into the fairness of the proposed settlement." (Id., subd. (g).) The court enters judgment thereon if it finds the settlement agreement to be fair. (Id., subd. (h).)

In determining whether to preliminarily approve a settlement, the court should consider "the strength of plaintiff's case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the aggrieved employees to the proposed settlement." (*Dunk*, supra, 48 Cal.App.4th at p. 1801.) The court must also take into consideration that "[t]he most important factor [is] the strength of the case for the plaintiff on the merits, balanced against the amount offered in settlement." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 118.)

Conclusion

1. Plaintiff's Unopposed Motion for Approval of Private Attorneys General Act Representative Action Settlement is **granted**.
2. The Settlement and Release Agreement is **approved** in its entirety as fair, reasonable, and adequate.
3. The requested \$350,000 in attorneys' fees and \$35,000 in litigation costs are **approved** and awarded to Plaintiff's Counsel, except that the Administrator is ordered to withhold 5% of the fees until a compliance hearing demonstrates that Counsel and the Administrator have complied with this order.
4. The \$10,000 service award to Plaintiff Carlos Diaz is **approved**.
5. The \$6,550 in settlement administration expenses to ILYM Group, Inc. is **approved**.
6. The allocation and distribution of PAGA penalties as set forth in the Settlement: 75% (\$280,087.50) to the Labor and Workforce Development Agency and 25% (\$93,362.50) to Aggrieved Employees is **approved**.
7. The Settlement Administrator is authorized to implement the notice and distribution procedures set forth in the Settlement, including the mailing of Individual Allocation checks to Aggrieved Employees and the transmission of undeliverable funds to the State Controller's Office Unclaimed Property Division.
8. The releases set forth in the Settlement are **approved** and shall be binding upon Plaintiff and all Aggrieved Employees.
9. This action is dismissed with prejudice as to Defendant Contra Costa Electric, Inc., with each party to bear its own costs except as otherwise provided herein.
10. The Court retains jurisdiction over this matter for the limited purpose of enforcing the terms

of the Settlement.

11. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. Plaintiffs' counsel are to submit a compliance statement ten (10) court days prior to the hearing.
12. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
13. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
14. Plaintiff's Counsel shall prepare and e-file a proposed order conforming to this ruling, attaching this ruling no later than five (5) days from the date of the hearing.
15. No appearance is required at the hearing on September 21, 2026.

Discovery Law & Motion

28. 9:01 AM CASE NUMBER: C22-02598

CASE NAME: RUBEN HERRERA, JR. VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT, A CALIFORNIA PUBLIC SCHOOL DISTRICT

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF BILL COCKERHAM**

FILED BY: HERRERA, RUBEN

TENTATIVE RULING:

This motion is withdrawn and vacated by stipulation of counsel. No appearance is required on September 16, 2026.